

CRIMINAL LAW

Causation

A clear guide to factual causation, the but-for test, and the first questions of legal causation

Central question: Did the defendant's unlawful conduct cause the prohibited result?

HOW TO USE THIS GUIDE

- Learn the two-stage structure: **factual causation** first, then **legal causation**.
- Use the cases to see why **intention is not the same as causation**.
- Apply the final checklist to a problem question before reaching a conclusion.

English law · Introductory level · Standalone study guide

1. Why causation matters

Causation connects the defendant's conduct with a result required by an offence. It is part of the *actus reus* of a result crime. The prosecution must prove that the prohibited result is legally attributable to the defendant's conduct.

Result crimes and conduct crimes

Type of offence	What must the prosecution prove?	Example
Result crime	A prohibited consequence occurred, and the defendant caused it.	Murder requires the death of a person.
Conduct crime	The prohibited conduct occurred; a further harmful result is not required.	Dangerous driving can be complete without a collision or injury.
Circumstance-based offence	A relevant circumstance existed when the defendant acted.	Driving without valid insurance focuses on the uninsured driving.

Important: If the victim does not die, the completed offence of murder is impossible. A different offence—such as attempted murder or causing grievous bodily harm—may nevertheless have been committed.

Learning objectives

- explain why causation is principally relevant to result crimes;
- distinguish factual causation from legal causation;
- state and apply the but-for test;
- explain *R v White* [1910] 2 KB 124;
- analyse multiple causes and possible intervening acts at an introductory level;
- explain precisely what the Court of Appeal decided in *R v Wallace* [2018] EWCA Crim 690.

2. The two-stage inquiry

Causation is normally analysed in two stages. Passing the first stage does not automatically satisfy the second.

Stage	Question	Core idea
1. Factual causation	But for the defendant's conduct, would the prohibited result have occurred when and as it did?	Historical connection: was the conduct a necessary condition of the result?
2. Legal causation	Is the connection sufficiently strong for the law to attribute the result to the defendant?	Normative responsibility: did the conduct remain a significant and operating cause, or was the chain broken?

Why two stages are necessary

The world rarely contains only one cause. A victim's death may involve an injury, an existing illness, medical treatment, the victim's own decision, or a third party's conduct. Criminal law therefore asks both whether the defendant was a cause in fact and whether that contribution should count as a cause in law.

Do not collapse the stages: The but-for test is a necessary starting point in an ordinary single-cause case, but it is not by itself a complete test of criminal responsibility.

A simple map

- Step 1 — Identify the result.** What consequence forms part of the offence: death, injury, damage, or another prohibited outcome?
- Step 2 — Apply factual causation.** Remove the defendant's conduct mentally and ask whether the result would still have occurred when and as it did.
- Step 3 — Consider legal causation.** Ask whether the defendant's conduct remained a sufficiently significant and operating cause.
- Step 4 — Test possible breaks in the chain.** Consider acts of the victim, third parties, medical treatment, or natural events.

3. Factual causation: the but-for test

The standard starting point is the **but-for test**:

Question: But for the defendant's conduct, would the prohibited result have occurred when and as it did?

Answer	Meaning	Consequence
No	Without the defendant's conduct, the result would not have occurred in the relevant way.	Factual causation is normally established.
Yes	Even without the defendant's conduct, the same result would have occurred in the relevant way.	Factual causation is normally not established.

How to apply the test

- 1. State the relevant conduct precisely.** Do not ask whether the defendant was generally involved; identify the particular act or omission alleged to have caused the result.
- 2. State the relevant result precisely.** For homicide, the result is the victim's death—not merely illness or injury.
- 3. Construct the counterfactual world.** Imagine that the defendant did not perform the alleged conduct.
- 4. Compare the outcome.** Would the same result still have occurred when and as it did?
- 5. Give a provisional conclusion.** If no, factual causation is present; then move to legal causation.

Useful examination language

"But for D's act of ____, would V have suffered ____ when and as V did? Because the answer is ____, D's conduct is/is not a factual cause. The analysis must then proceed to legal causation."

Precision point: Causation concerns what actually caused the result. A desire or intention to cause harm cannot substitute for proof that the defendant's conduct did cause it.

4. Case study: R v White

R v White [1910] 2 KB 124

Facts

White intended to kill his mother. He placed cyanide in her drink. She later died, but medical evidence showed that she had died from heart failure before the poison could take effect. The cyanide did not cause her death.

Issue

Could White be guilty of murder when he intended to kill his mother but his conduct did not factually cause her death?

Application of the but-for test

Counterfactual question: But for White's act of putting cyanide in the drink, would his mother still have died when she did?

Yes. She would still have died from heart failure. White's act was therefore **not a factual cause** of her death.

Decision and significance

- **Murder:** causation was not established, so White could not be convicted of the completed homicide.
- **Attempted murder:** his conviction for attempt remained possible because he intended to kill and had acted toward that result, even though death was caused independently.
- **Principle:** intention and causation are separate requirements. A defendant may have the required mens rea but still fail to cause the actus reus of the completed result crime.

Memory sentence: White wanted to be the cause of death, but wanting to cause a result is not the same as actually causing it.

5. Complications: more than one cause

A result may have several contributing causes. Criminal law does not require the defendant's act to be the only cause or even the main cause. The important questions are whether it made the required factual contribution and whether it remained sufficiently significant in law.

Multiple causes

Suppose D seriously wounds V. V also has a medical condition, receives treatment, and later dies. The illness and the treatment do not automatically erase D's contribution. Several causes can operate together.

- **“There was another cause” is not a complete defence.**
- **The prosecution need not prove that D was the sole cause.**
- **The question is whether D's contribution satisfies both factual and legal causation.**

Intervening causes

An event occurring after the defendant's conduct may be described as a possible *novus actus interveniens*—a new intervening act. Such an event breaks the chain only when it is sufficiently independent of the defendant's conduct to replace it as the legal cause of the result.

Possible later event	Question to ask
The victim's own action	Was it a free and independent choice, or a response produced or strongly shaped by D's conduct?
A third party's act	Was it independent, voluntary, and sufficiently powerful to replace D's contribution?
Medical treatment	Did D's original injury remain a significant and operating cause despite the treatment?
A natural event or pre-existing condition	Did it independently produce the result, or did D's conduct accelerate or contribute to it?

Warning: The Latin expression is a label, not an automatic answer. The court must evaluate the relationship between the original conduct, the later event, and the final result.

6. Case study: R v Wallace

R v Wallace [2018] EWCA Crim 690

Facts

Berlinah Wallace threw highly concentrated sulphuric acid over her former partner, Mark van Dongen. He suffered catastrophic injuries, including paralysis, blindness in one eye, the loss of a leg, severe physical pain, and grave psychological suffering. After prolonged treatment, he travelled to Belgium and requested euthanasia. A doctor lawfully administered the fatal medication under Belgian law.

The causation problem

The defence argued that van Dongen's request and the doctor's administration of the medication were new intervening acts that broke the causal chain between the acid attack and the death. The trial judge withdrew the murder count from the jury. The prosecution appealed that ruling.

What the Court of Appeal decided

The Court of Appeal allowed the prosecution's appeal. It held that a properly directed jury **could** find that Wallace's attack made a significant contribution to the death. The victim's request for death and the doctor's act did not necessarily make the attack legally irrelevant. Whether the chain was broken was a question for the jury on all the facts.

Crucial limitation: The Court of Appeal did not find Wallace guilty of murder. It decided that the evidence permitted the causation issue to be considered by a jury.

Later outcome

At the subsequent trial, the jury acquitted Wallace of murder but convicted her of applying a corrosive fluid with intent. She received a life sentence with a minimum term of twelve years. The acquittal does not reverse the Court of Appeal's legal point: the issue was capable of being left to the jury, but the jury was not compelled to find murder proved beyond reasonable doubt.

7. Understanding Wallace

Wallace is difficult because the victim made a conscious request and a doctor performed the final physical act. The case shows why legal causation cannot always be reduced to a mechanical search for the last event in time.

Argument that the chain was broken	Argument that the chain remained intact
Van Dongen deliberately requested euthanasia.	The request was a response to catastrophic suffering caused by the acid attack.
A doctor administered the fatal medication.	The doctor lawfully carried out what van Dongen could not physically do himself.
The immediate cause of death was the medication.	The attack could still be regarded as a significant cause of the circumstances leading to death.
The later choices were voluntary acts.	Voluntariness is evaluated in context; the original attack may have profoundly constrained the victim's situation.

The teaching point

A later voluntary act does not automatically break the chain. The central question is whether that act is so independent of the defendant's conduct that it should replace the defendant's conduct as the legal cause. In a difficult case, causation is commonly a question of fact for the jury, guided by legal directions from the judge.

Compare White and Wallace

Case	Why causation was difficult	Legal lesson
White	A completely independent natural cause—heart failure—produced death before the poison could operate.	No factual causation: death would have occurred anyway.
Wallace	The final act followed the victim's response to catastrophic injuries inflicted by D.	A jury could find legal causation; the later act did not necessarily break the chain.

8. Worked examples

Example 1 — Independent natural death

D secretly gives V a substance intending to kill V. Before the substance takes effect, V dies instantly from an unrelated brain aneurysm.

- **Factual causation:** no. V would have died when V did even without D's act.
- **Completed homicide:** not established on these facts because D did not cause the death.
- **Possible alternative liability:** attempt may need to be considered, depending on the applicable rules and proof of intent.

Example 2 — Accelerating death

V has a terminal illness and is expected to die in six months. D assaults V, and the injury causes V to die that day.

- **Factual causation:** yes. Without D's assault, V would not have died when V did.
- **Key point:** the fact that V would have died later does not prevent D from causing an earlier death.

Example 3 — More than one contribution

D wounds V. V's existing illness and the wound together cause death. Neither factor alone provides a complete explanation.

- **Do not stop at:** "V was already ill." A pre-existing condition does not automatically remove D's causal contribution.
- **Next question:** did D's wound remain a significant and operating cause in law?

Example 4 — A later decision

D inflicts catastrophic injuries. V later makes a deliberate decision closely connected to the pain and disability caused by those injuries.

- **Factual causation:** apply the counterfactual carefully.
- **Legal causation:** ask whether V's decision was so independent that it replaced D's conduct as the legal cause. Wallace shows that voluntariness alone does not necessarily answer the question.

9. Problem-question method

Use this sequence whenever an offence requires proof that D caused a result.

1. **Identify the offence and its result element.** What precise consequence must the prosecution prove?
2. **Identify D's relevant conduct.** Separate the alleged causal act or omission from the surrounding story.
3. **Apply the but-for test.** Would the result have occurred when and as it did without D's conduct?
4. **State the factual-causation conclusion.** Explain the counterfactual; do not merely announce yes or no.
5. **Move to legal causation.** Was D's contribution more than negligible and still significant and operating?
6. **Examine every possible intervening event.** Consider the victim, a third party, medical treatment, and independent natural causes.
7. **Reach an offence-specific conclusion.** State whether causation for the charged result crime is proved beyond reasonable doubt; then identify any plausible alternative offence.

Model paragraph

"The prosecution must prove that D caused V's death. Factual causation is tested by asking whether V would have died when and as V did but for D's conduct. Here, _____. Therefore, factual causation is/is not established. If it is established, the next question is whether D's conduct remained a significant and operating cause. The possible intervening event is _____. It did/did not break the chain because _____. Accordingly, causation is likely/unlikely to be proved."

Common mistakes

- **Confusing intention with causation.** Mens rea cannot prove that D actually caused the result.
- **Asking only what happened last.** The final event in time is not automatically the legal cause.
- **Assuming that one additional cause ends liability.** There may be several legally relevant causes.
- **Stopping after the but-for test.** Factual causation must normally be followed by legal causation.
- **Treating novus actus interveniens as a magic phrase.** Explain why the later act is or is not independent enough to break the chain.

10. Legal English vocabulary

Term	Meaning in this topic
causation	The legal connection between conduct and a prohibited result.
result crime	An offence requiring a specified consequence, such as death.
conduct crime	An offence completed by prohibited conduct without proof of a further result.
factual causation	The historical or counterfactual connection tested primarily by the but-for test.
legal causation	The further judgment that D's contribution is sufficiently significant for legal responsibility.
but-for test	The question whether the result would have occurred when and as it did without D's conduct.
counterfactual	A hypothetical comparison in which the relevant conduct is removed.
intervening cause	A later event alleged to interrupt the causal chain.
novus actus interveniens	Latin term for a new intervening act capable of breaking the chain of causation.
chain of causation	The legally relevant sequence connecting D's conduct with the result.
significant and operating cause	A contribution that remains legally effective at the time of the result.
withdraw a count	To remove a criminal charge from the jury's consideration.
acquit	To find a defendant not guilty of a charge.
convict	To find a defendant guilty of an offence.

Pronunciation and usage notes

- **Causation** /kə:'zeɪʃən/ — stress the second syllable: cau-**SA**-tion.
- ***Mens rea*** and ***actus reus*** are commonly written in italics; both are Latin expressions used in English legal writing.
- ***Novus actus interveniens*** is useful vocabulary, but a clear English explanation should always follow it.

11. Final recap

- **Causation belongs to the actus reus of result crimes.** The prosecution must connect D's conduct to the prohibited consequence.
- **Begin with factual causation.** Ask the but-for question using a precise counterfactual.
- **Then examine legal causation.** A factual contribution must also be sufficiently significant in law.
- **There can be several causes.** D need not be the sole or last cause.
- **A later act does not automatically break the chain.** It must be sufficiently independent to replace D's conduct as the legal cause.
- **White separates intention from causation.** The intended poison did not cause the death.
- **Wallace shows the importance of context.** A victim's later decision and a doctor's act did not necessarily prevent a jury from finding that the original attack significantly contributed to death.

One-sentence rule

Rule: For a result crime, D must factually cause the prohibited result, and D's conduct must remain a legally significant cause despite any later events.

Authorities and further reading

- R v White [1910] 2 KB 124.
- R v Wallace [2018] EWCA Crim 690.
- R v Pagett (1983) 76 Cr App R 279; [1983] EWCA Crim 1.
- Judicial College, Crown Court Compendium Part I: Jury and Trial Management and Summing Up, section on causation.
- R v Berlinah Wallace, Sentencing Remarks, Crown Court at Bristol, 23 May 2018.

Scope note

This introductory guide explains the causation issues raised in the source lecture and adds limited doctrinal context. Detailed rules on medical treatment, victims' acts, third-party acts, omissions, and exceptional multiple-cause problems require separate treatment.